



Bill Number: H.B. 2380

Hoffman Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Replaces the requirement for a school district governing board (governing board) with a student count of more than 5,000 students to provide the public with access to a live video feed of each meeting and online access to video recordings of each meeting for at least five years after the date of the meeting with a requirement for a governing board to provide such materials if:
 - a) the school district has a student count of more than 250 students; or
 - b) the school district has a student count of 250 or fewer students and has previously provided the public with a live video feed of a regular governing board meeting.
2. Makes technical changes.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2380
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-321, Arizona Revised Statutes, is amended to
3 read:

4 15-321. Organization; election of president; meetings;
5 quorum; execution of warrants; exemption

6 A. For the purpose of organizing the governing board, the board
7 shall meet at the most convenient public facility in the school
8 district. ~~If a public facility is not available within the district, the~~
9 ~~governing board may meet at any available public facility that is~~
10 ~~convenient to all governing board members, regardless of the county or~~
11 ~~school district in which the facility is located. The governing board~~
12 ~~shall meet~~ in January next following the election.

13 B. At the organization meeting the governing board shall elect from
14 among the membership of the board a president.

15 C. For the purposes of regular meetings of the governing board, the
16 board shall meet at the most convenient public facility in the school
17 district. ~~If a public facility is not available within the district, the~~
18 ~~governing board may meet at any available public facility that is~~
19 ~~convenient to all governing board members, regardless of the county or~~
20 ~~school district in which the facility is located.~~

21 D. The board shall prescribe rules for its own government. It
22 shall hold a regular meeting at least once each month during the regular
23 school year and may hold other meetings as often as called. If action has
24 been taken and documents approved at a meeting, they may be signed
25 subsequently by individual board members.

26 E. Business shall be conducted at regular or special meetings.
27 Notice of a special meeting, and of the hour for a regular meeting if no
28 hour is fixed by a rule of the board, shall be delivered personally or by
29 telephone.

1 F. Notwithstanding section 1-216, if there is a vacancy or
2 vacancies on the governing board, a majority of the remaining members of
3 the governing board constitute a quorum for the transaction of business,
4 except that a single member of the governing board does not constitute a
5 quorum.

6 G. An order on a county school superintendent for a salary or other
7 expense shall be signed by the governing board. An order for a salary or
8 other expense may be signed between board meetings if a resolution to that
9 effect has been passed before the signing at a regular or special meeting
10 of the governing board and the order is ratified by the board at the next
11 regular or special meeting of the governing board.

12 H. This section does not apply to county school superintendents in
13 the conduct of an accommodation school.

14 Sec. 2. Section 15-341, Arizona Revised Statutes, is amended to
15 read:

16 15-341. General powers and duties; immunity; delegation

17 A. Each school district governing board shall:

18 1. Prescribe and enforce policies and procedures to govern the
19 schools that are not inconsistent with the laws or rules prescribed by the
20 state board of education.

21 2. Exclude from schools all books, publications, papers or
22 audiovisual materials of a sectarian, partisan or denominational
23 character. This paragraph does not prohibit the elective course allowed
24 by section 15-717.01.

25 3. Manage and control the school property within its district,
26 except that a district may enter into a partnership with an entity,
27 including a charter school, another school district or a military base, to
28 operate a school or offer educational services in a district building,
29 including at a vacant or partially used building, or in any building on
30 the entity's property pursuant to a written agreement between the parties.

31 4. Acquire school furniture, apparatus, equipment, library books
32 and supplies for the schools to use.

33 5. Prescribe the curricula and criteria for the promotion and
34 graduation of pupils as provided in sections 15-701 and 15-701.01.

35 6. Furnish, repair and insure, at full insurable value, the school
36 property of the district.

37 7. Construct school buildings on approval by a vote of the district
38 electors.

39 8. In the name of the district, convey property belonging to the
40 district and sold by the board.

41 9. Purchase school sites when authorized by a vote of the district
42 at an election conducted as nearly as practicable in the same manner as
43 the election provided in section 15-481 and held on a date prescribed in
44 section 15-491, subsection E, but such authorization shall not necessarily
45 specify the site to be purchased and such authorization shall not be

1 necessary to exchange unimproved property as provided in section 15-342,
2 paragraph 23.

3 10. Construct, improve and furnish buildings used for school
4 purposes when such buildings or premises are leased from the national park
5 service.

6 11. Purchase school sites or construct, improve and furnish school
7 buildings from the proceeds of the sale of school property only on
8 approval by a vote of the district electors.

9 12. Hold pupils to strict account for disorderly conduct on school
10 property.

11 13. Discipline students for disorderly conduct on the way to and
12 from school.

13 14. Except as provided in section 15-1224, deposit all monies
14 received by the district as gifts, grants and devises with the county
15 treasurer who shall credit the deposits as designated in the uniform
16 system of financial records. If not inconsistent with the terms of the
17 gifts, grants and devises given, any balance remaining after expenditures
18 for the intended purpose of the monies have been made shall be used to
19 reduce school district taxes for the budget year, except that in the case
20 of accommodation schools the county treasurer shall carry the balance
21 forward for use by the county school superintendent for accommodation
22 schools for the budget year.

23 15. Provide that, if a parent or legal guardian chooses not to
24 accept a decision of the teacher as provided in paragraph 42 of this
25 subsection, the parent or legal guardian may request in writing that the
26 governing board review the teacher's decision. This paragraph does not
27 release school districts from any liability relating to a child's
28 promotion or retention.

29 16. Provide for adequate supervision over pupils in instructional
30 and noninstructional activities by certificated or noncertificated
31 personnel.

32 17. Use school monies received from the state and county school
33 apportionment exclusively to pay salaries of teachers and other employees
34 and contingent expenses of the district.

35 18. Annually report to the county school superintendent on or
36 before October 1 in the manner and form and on the blanks prescribed by
37 the superintendent of public instruction or county school superintendent.
38 The board shall also report directly to the county school superintendent
39 or the superintendent of public instruction whenever required.

40 19. Deposit all monies received by school districts other than
41 student activities monies or monies from auxiliary operations as provided
42 in sections 15-1125 and 15-1126 with the county treasurer to the credit of
43 the school district except as provided in paragraph 20 of this subsection
44 and sections 15-1223 and 15-1224, and the board shall spend the monies as
45 provided by law for other school funds.

1 20. Establish bank accounts in which the board during a month may
2 deposit miscellaneous monies received directly by the district. The board
3 shall remit monies deposited in the bank accounts at least monthly to the
4 county treasurer for deposit as provided in paragraph 19 of this
5 subsection and in accordance with the uniform system of financial records.

6 21. Prescribe and enforce policies and procedures for disciplinary
7 action against a teacher who engages in conduct that is a violation of the
8 policies of the governing board but that is not cause for dismissal of the
9 teacher or for revocation of the certificate of the teacher. Disciplinary
10 action may include suspension without pay for a period of time not to
11 exceed ten school days. Disciplinary action shall not include suspension
12 with pay or suspension without pay for a period of time longer than ten
13 school days. The procedures shall include notice, hearing and appeal
14 provisions for violations that are cause for disciplinary action. The
15 governing board may designate a person or persons to act on behalf of the
16 board on these matters.

17 22. Prescribe and enforce policies and procedures for disciplinary
18 action against an administrator who engages in conduct that is a violation
19 of the policies of the governing board regarding duties of administrators
20 but that is not cause for dismissal of the administrator or for revocation
21 of the certificate of the administrator. Disciplinary action may include
22 suspension without pay for a period of time not to exceed ten school days.
23 Disciplinary action shall not include suspension with pay or suspension
24 without pay for a period of time longer than ten school days. The
25 procedures shall include notice, hearing and appeal provisions for
26 violations that are cause for disciplinary action. The governing board
27 may designate a person or persons to act on behalf of the board on these
28 matters. For violations that are cause for dismissal, the provisions of
29 notice, hearing and appeal in chapter 5, article 3 of this title apply.
30 The filing of a timely request for a hearing suspends the imposition of a
31 suspension without pay or a dismissal pending completion of the hearing.

32 23. Notwithstanding sections 13-3108 and 13-3120, prescribe and
33 enforce policies and procedures that prohibit a person from carrying or
34 possessing a weapon on school grounds unless the person is a peace officer
35 or has obtained specific authorization from the school administrator.

36 24. Prescribe and enforce policies and procedures relating to the
37 health and safety of all pupils participating in district-sponsored
38 practice sessions or games or other interscholastic athletic activities,
39 including:

40 (a) The provision of water.

41 (b) Guidelines, information and forms, developed in consultation
42 with a statewide private entity that supervises interscholastic
43 activities, to inform and educate coaches, pupils and parents of the
44 dangers of concussions and head injuries and the risks of continued
45 participation in athletic activity after a concussion. The policies and
46 procedures shall require that, before a pupil participates in an athletic

1 activity, the pupil and the pupil's parent sign an information form at
2 least once each school year that states that the parent is aware of the
3 nature and risk of concussion. The policies and procedures shall require
4 that a pupil who is suspected of sustaining a concussion in a practice
5 session, game or other interscholastic athletic activity be immediately
6 removed from the athletic activity and that the pupil's parent or guardian
7 be notified. A coach from the pupil's team or an official or a licensed
8 health care provider may remove a pupil from play. A team parent may also
9 remove the parent's own child from play. A pupil may return to play on
10 the same day if a health care provider rules out a suspected concussion at
11 the time the pupil is removed from play. On a subsequent day, the pupil
12 may return to play if the pupil has been evaluated by and received written
13 clearance to resume participation in athletic activity from a health care
14 provider who has been trained in evaluating and managing concussions and
15 head injuries. A health care provider who is a volunteer and who provides
16 clearance to participate in athletic activity on the day of the suspected
17 injury or on a subsequent day is immune from civil liability with respect
18 to all decisions made and actions taken that are based on good faith
19 implementation of the requirements of this subdivision, except in cases of
20 gross negligence or wanton or wilful neglect. A school district, school
21 district employee, team coach, official or team volunteer or a parent or
22 guardian of a team member is not subject to civil liability for any act,
23 omission or policy undertaken in good faith to comply with the
24 requirements of this subdivision or for a decision made or an action taken
25 by a health care provider. A group or organization that uses property or
26 facilities owned or operated by a school district for athletic activities
27 shall comply with the requirements of this subdivision. A school district
28 and its employees and volunteers are not subject to civil liability for
29 any other person or organization's failure or alleged failure to comply
30 with the requirements of this subdivision. This subdivision does not
31 apply to teams that are based in another state and that participate in an
32 athletic activity in this state. For the purposes of this subdivision,
33 athletic activity does not include dance, rhythmic gymnastics,
34 competitions or exhibitions of academic skills or knowledge or other
35 similar forms of physical noncontact activities, civic activities or
36 academic activities, whether engaged in for the purposes of competition or
37 recreation. For the purposes of this subdivision, "health care provider"
38 means a physician who is licensed pursuant to title 32, chapter 13, 14 or
39 17, an athletic trainer who is licensed pursuant to title 32, chapter 41,
40 a nurse practitioner who is licensed pursuant to title 32, chapter 15, and
41 a physician assistant who is licensed pursuant to title 32, chapter 25.

42 (c) Guidelines, information and forms that are developed in
43 consultation with a statewide private entity that supervises
44 interscholastic activities to inform and educate coaches, pupils and
45 parents of the dangers of heat-related illnesses, sudden cardiac death and
46 prescription opioid use. Before a pupil participates in any

1 district-sponsored practice session or game or other interscholastic
2 athletic activity, the pupil and the pupil's parent must be provided with
3 information at least once each school year on the risks of heat-related
4 illnesses, sudden cardiac death and prescription opioid addiction.

5 25. Establish an assessment, data gathering and reporting system as
6 prescribed in chapter 7, article 3 of this title.

7 26. Provide special education programs and related services
8 pursuant to section 15-764, subsection A to all children with disabilities
9 as defined in section 15-761.

10 27. Administer competency tests prescribed by the state board of
11 education for the graduation of pupils from high school.

12 28. Ensure that insurance coverage is secured for all construction
13 projects for purposes of general liability, property damage and workers'
14 compensation and secure performance and payment bonds for all construction
15 projects.

16 29. Collect and maintain information about each current and former
17 teacher's educational and teaching background and experience in a
18 particular academic content subject area. A school district shall either
19 post the information on the school district's website or make the
20 information available for inspection on request of parents and guardians
21 of pupils enrolled at a school. This paragraph does not require any
22 school to release personally identifiable information in relation to any
23 teacher, including the teacher's address, salary, social security number
24 or telephone number.

25 30. Report to local law enforcement agencies any suspected crime
26 against a person or property that is a serious offense as defined in
27 section 13-706 or that involves a deadly weapon or dangerous instrument or
28 serious physical injury and any conduct that poses a threat of death or
29 serious physical injury to employees, students or anyone on the property
30 of the school. This paragraph does not limit or preclude the reporting by
31 a school district or an employee of a school district of suspected crimes
32 other than those required to be reported by this paragraph. For the
33 purposes of this paragraph, "dangerous instrument", "deadly weapon" and
34 "serious physical injury" have the same meanings prescribed in section
35 13-105.

36 31. In conjunction with local law enforcement agencies and
37 emergency response agencies, develop an emergency response plan for each
38 school in the school district in accordance with minimum standards
39 developed jointly by the department of education and the division of
40 emergency management within the department of emergency and military
41 affairs. Any emergency response plan developed pursuant to this paragraph
42 must address how the school and emergency responders will communicate with
43 and provide assistance to students with disabilities.

44 32. Provide written notice to the parents or guardians of all
45 students enrolled in the school district at least ten days before a public
46 meeting to discuss closing a school within the school district. The

1 notice shall include the reasons for the proposed closure and the time and
2 place of the meeting. The governing board shall fix a time for a public
3 meeting on the proposed closure not less than ten days before voting in a
4 public meeting to close the school. The school district governing board
5 shall give notice of the time and place of the meeting. At the time and
6 place designated in the notice, the school district governing board shall
7 hear reasons for or against closing the school. The school district
8 governing board is exempt from this paragraph if the governing board
9 determines that the school shall be closed because it poses a danger to
10 the health or safety of the pupils or employees of the school.
11 A governing board may consult with the division of school facilities
12 within the department of administration for technical assistance and for
13 information on the impact of closing a school. The information provided
14 from the division of school facilities within the department of
15 administration shall not require the governing board to take or not take
16 any action.

17 33. Incorporate instruction on Native American history into
18 appropriate existing curricula.

19 34. Prescribe and enforce policies and procedures:

20 (a) Allowing pupils who have been diagnosed with anaphylaxis by a
21 health care provider licensed pursuant to title 32, chapter 13, 14, 17 or
22 25 or by a registered nurse practitioner licensed and certified pursuant
23 to title 32, chapter 15 to carry and self-administer emergency
24 medications, including epinephrine delivery systems, while at school and
25 at school-sponsored activities. The pupil's name on the prescription
26 label on the medication container or on the medication device and annual
27 written documentation from the pupil's parent or guardian to the school
28 that authorizes possession and self-administration is sufficient proof
29 that the pupil is entitled to possess and self-administer the
30 medication. The policies shall require a pupil who uses an epinephrine
31 delivery system while at school and at school-sponsored activities to
32 notify the nurse or the designated school staff person of the use of the
33 medication as soon as practicable. A school district and its employees
34 are immune from civil liability with respect to all decisions made and
35 actions taken that are based on good faith implementation of the
36 requirements of this subdivision, except in cases of wanton or wilful
37 neglect.

38 (b) For the emergency administration of epinephrine delivery
39 systems by a trained employee of a school district pursuant to section
40 15-157.

41 35. Allow the possession and self-administration of prescription
42 medication for breathing disorders in handheld inhaler devices by pupils
43 who have been prescribed that medication by a health care professional
44 licensed pursuant to title 32. The pupil's name on the prescription label
45 on the medication container or on the handheld inhaler device and annual
46 written documentation from the pupil's parent or guardian to the school

1 that authorizes possession and self-administration is sufficient proof
2 that the pupil is entitled to possess and self-administer the medication.
3 A school district and its employees are immune from civil liability with
4 respect to all decisions made and actions taken that are based on a good
5 faith implementation of the requirements of this paragraph.

6 36. Prescribe and enforce policies and procedures to prohibit
7 pupils from harassing, intimidating and bullying other pupils on school
8 grounds, on school property, on school buses, at school bus stops, at
9 school-sponsored events and activities and through the use of electronic
10 technology or electronic communication on school computers, networks,
11 forums and mailing lists that include the following components:

12 (a) A procedure for pupils, parents and school district employees
13 to confidentially report to school officials incidents of harassment,
14 intimidation or bullying. The school shall make available written forms
15 designed to provide a full and detailed description of the incident and
16 any other relevant information about the incident.

17 (b) A requirement that school district employees report in writing
18 suspected incidents of harassment, intimidation or bullying to the
19 appropriate school official and a description of appropriate disciplinary
20 procedures for employees who fail to report suspected incidents that are
21 known to the employee.

22 (c) A requirement that, at the beginning of each school year,
23 school officials provide all pupils with a written copy of the rights,
24 protections and support services available to a pupil who is an alleged
25 victim of an incident reported pursuant to this paragraph.

26 (d) If an incident is reported pursuant to this paragraph, a
27 requirement that school officials provide a pupil who is an alleged victim
28 of the incident with a written copy of the rights, protections and support
29 services available to that pupil.

30 (e) A formal process for documenting reported incidents of
31 harassment, intimidation or bullying and providing for the
32 confidentiality, maintenance and disposition of this documentation.
33 School districts shall maintain documentation of all incidents reported
34 pursuant to this paragraph for at least six years. The school shall not
35 use that documentation to impose disciplinary action unless the
36 appropriate school official has investigated and determined that the
37 reported incidents of harassment, intimidation or bullying occurred. If a
38 school provides documentation of reported incidents to persons other than
39 school officials or law enforcement, all individually identifiable
40 information shall be redacted.

41 (f) A formal process for the appropriate school officials to
42 investigate suspected incidents of harassment, intimidation or bullying,
43 including procedures for notifying the alleged victim and the alleged
44 victim's parent or guardian when a school official or employee becomes
45 aware of the suspected incident of harassment, intimidation or bullying.

1 (g) Disciplinary procedures for pupils who have admitted or been
2 found to have committed incidents of harassment, intimidation or bullying.

3 (h) A procedure that sets forth consequences for submitting false
4 reports of incidents of harassment, intimidation or bullying.

5 (i) Procedures designed to protect the health and safety of pupils
6 who are physically harmed as the result of incidents of harassment,
7 intimidation and bullying, including, if appropriate, procedures to
8 contact emergency medical services or law enforcement agencies, or both.

9 (j) Definitions of harassment, intimidation and bullying.

10 37. Prescribe and enforce policies and procedures regarding
11 changing or adopting attendance boundaries that include the following
12 components:

13 (a) A procedure for holding public meetings to discuss attendance
14 boundary changes or adoptions that allows public comments.

15 (b) A procedure to notify the parents or guardians of the students
16 affected, including assurance that, if that school remains open as part of
17 the boundary change and capacity is available, students assigned to a new
18 attendance area may stay enrolled in their current school.

19 (c) A procedure to notify the residents of the households affected
20 by the attendance boundary changes.

21 (d) A process for placing public meeting notices and proposed maps
22 on the school district's website for public review, if the school district
23 maintains a website.

24 (e) A formal process for presenting the attendance boundaries of
25 the affected area in public meetings that allows public comments.

26 (f) A formal process for notifying the residents and parents or
27 guardians of the affected area as to the decision of the governing board
28 on the school district's website, if the school district maintains a
29 website.

30 (g) A formal process for updating attendance boundaries on the
31 school district's website within ninety days after an adopted boundary
32 change. The school district shall send a direct link to the school
33 district's attendance boundaries website to the department of real estate.

34 38. If the state board of education determines that the school
35 district has committed an overexpenditure as defined in section 15-107,
36 provide a copy of the fiscal management report submitted pursuant to
37 section 15-107, subsection H on its website and make copies available to
38 the public on request. The school district shall comply with a request
39 within five business days after receipt.

40 39. Ensure that the contract for the superintendent is structured
41 in a manner in which up to twenty percent of the total annual salary
42 included for the superintendent in the contract is classified as
43 performance pay. This paragraph does not require school districts to
44 increase total compensation for superintendents. Unless the school
45 district governing board votes to implement an alternative procedure at a

1 public meeting called for this purpose, the performance pay portion of the
2 superintendent's total annual compensation shall be determined as follows:

3 (a) Twenty-five percent of the performance pay shall be determined
4 based on the percentage of academic gain determined by the department of
5 education of pupils who are enrolled in the school district compared to
6 the academic gain achieved by the highest ranking of the fifty largest
7 school districts in this state. For the purposes of this subdivision, the
8 department of education shall determine academic gain by the academic
9 growth achieved by each pupil who has been enrolled at the same school in
10 a school district for at least five consecutive months measured against
11 that pupil's academic results in the 2008-2009 school year. For the
12 purposes of this subdivision, of the fifty largest school districts in
13 this state, the school district with pupils who demonstrate the highest
14 statewide percentage of overall academic gain measured against academic
15 results for the 2008-2009 school year shall be assigned a score of 100 and
16 the school district with pupils who demonstrate the lowest statewide
17 percentage of overall academic gain measured against academic results for
18 the 2008-2009 school year shall be assigned a score of 0.

19 (b) Twenty-five percent of the performance pay shall be determined
20 by the percentage of parents of pupils who are enrolled at the school
21 district who assign a letter grade of "A" to the school on a survey of
22 parental satisfaction with the school district. The parental satisfaction
23 survey shall be administered and scored by an independent entity that is
24 selected by the governing board and that demonstrates sufficient expertise
25 and experience to accurately measure the results of the survey. The
26 parental satisfaction survey shall use standard random sampling procedures
27 and provide anonymity and confidentiality to each parent who participates
28 in the survey. The letter grade scale used on the parental satisfaction
29 survey shall direct parents to assign one of the following letter grades:

- 30 (i) A letter grade of "A" if the school district is excellent.
31 (ii) A letter grade of "B" if the school district is above average.
32 (iii) A letter grade of "C" if the school district is average.
33 (iv) A letter grade of "D" if the school district is below average.
34 (v) A letter grade of "F" if the school district is a failure.

35 (c) Twenty-five percent of the performance pay shall be determined
36 by the percentage of teachers who are employed at the school district and
37 who assign a letter grade of "A" to the school on a survey of teacher
38 satisfaction with the school. The teacher satisfaction survey shall be
39 administered and scored by an independent entity that is selected by the
40 governing board and that demonstrates sufficient expertise and experience
41 to accurately measure the results of the survey. The teacher satisfaction
42 survey shall use standard random sampling procedures and provide anonymity
43 and confidentiality to each teacher who participates in the survey. The
44 letter grade scale used on the teacher satisfaction survey shall direct
45 teachers to assign one of the following letter grades:

- 46 (i) A letter grade of "A" if the school district is excellent.

- 1 (ii) A letter grade of "B" if the school district is above average.
- 2 (iii) A letter grade of "C" if the school district is average.
- 3 (iv) A letter grade of "D" if the school district is below average.
- 4 (v) A letter grade of "F" if the school district is a failure.

5 (d) Twenty-five percent of the performance pay shall be determined
6 by other criteria selected by the governing board.

7 40. Maintain and store permanent public records of the school
8 district as required by law. Notwithstanding section 39-101, the
9 standards adopted by the Arizona state library, archives and public
10 records for the maintenance and storage of school district public records
11 shall allow school districts to elect to satisfy the requirements of this
12 paragraph by maintaining and storing these records either on paper or in
13 an electronic format, or a combination of a paper and electronic format.

14 41. Adopt in a public meeting and implement policies for principal
15 evaluations. Before adopting principal evaluation policies, the school
16 district governing board shall provide opportunities for public discussion
17 on the proposed policies. The governing board shall adopt policies that:

18 (a) Are designed to improve principal performance and improve
19 student achievement.

20 (b) Include the use of quantitative data on the academic progress
21 for all students, which shall account for between twenty percent and
22 thirty-three percent of the evaluation outcomes.

23 (c) Include four performance classifications, designated as highly
24 effective, effective, developing and ineffective.

25 (d) Describe both of the following:

26 (i) The methods used to evaluate the performance of principals,
27 including the data used to measure student performance and job
28 effectiveness.

29 (ii) The formula used to determine evaluation outcomes.

30 42. Prescribe and enforce policies and procedures that define the
31 duties of principals and teachers. These policies and procedures shall
32 authorize teachers to take and maintain daily classroom attendance, make
33 the decision to promote or retain a pupil in a grade in common school or
34 to pass or fail a pupil in a course in high school, subject to review by
35 the governing board in the manner provided in section 15-342,
36 paragraph 11.

37 43. Prescribe and enforce policies and procedures for the emergency
38 administration by an employee of a school district pursuant to section
39 36-2267 of naloxone hydrochloride or any other opioid antagonist approved
40 by the United States food and drug administration.

41 44. In addition to the notification requirements prescribed in
42 paragraph 36 of this subsection, prescribe and enforce reasonable and
43 appropriate policies to notify a pupil's parent or guardian if any person
44 engages in harassing, threatening or intimidating conduct against that
45 pupil. A school district and its officials and employees are immune from
46 civil liability with respect to all decisions made and actions taken that

1 are based on good faith implementation of the requirements of this
2 paragraph, except in cases of gross negligence or wanton or wilful
3 neglect. A person engages in threatening or intimidating if the person
4 threatens or intimidates by word or conduct to cause physical injury to
5 another person or serious damage to the property of another on school
6 grounds. A person engages in harassment if, with intent to harass or with
7 knowledge that the person is harassing another person, the person
8 anonymously or otherwise contacts, communicates or causes a communication
9 with another person by verbal, electronic, mechanical, telephonic or
10 written means in a manner that harasses on school grounds or substantially
11 disrupts the school environment.

12 45. Each fiscal year, provide to each school district employee a
13 total compensation statement that is broken down by category of benefit or
14 payment and that includes, for that employee, at least all of the
15 following:

- 16 (a) Base salary and any additional pay.
- 17 (b) Medical benefits and the value of any employer-paid portions of
- 18 insurance plan premiums.
- 19 (c) Retirement benefit plans, including social security.
- 20 (d) Legally required benefits.
- 21 (e) Any paid leave.
- 22 (f) Any other payment made to or on behalf of the employee.
- 23 (g) Any other benefit provided to the employee.

24 46. Develop and adopt in a public meeting policies to allow for
25 visits, tours and observations of all classrooms by parents of enrolled
26 pupils and parents who wish to enroll their children in the school
27 district unless a visit, tour or observation threatens the health and
28 safety of pupils and staff. These policies and procedures must be easily
29 accessible from the home page on each school's website.

30 47. HOLD ALL MEETINGS OF THE GOVERNING BOARD AND OF THE GOVERNING
31 BOARD'S SUBCOMMITTEES, AS DEFINED IN SECTION 38-431, AT A PUBLIC FACILITY
32 IN THE SCHOOL DISTRICT, SUBJECT TO THE REQUIREMENTS OF TITLE 38, CHAPTER
33 3, ARTICLE 3.1. THE GOVERNING BOARD SHALL ALSO:

34 (a) PROVIDE THE PUBLIC WITH ACCESS TO ALL GOVERNING BOARD MEETING
35 AND SUBCOMMITTEE MEETING MATERIALS SUBJECT TO THE FOLLOWING:

36 (i) MATERIALS THAT ARE PRESENTED AT A GOVERNING BOARD MEETING MUST
37 BE PROVIDED ONLINE AND IN THE SAME MANNER AS THE GOVERNING BOARD PROVIDES
38 ONLINE ACCESS TO MEETING NOTICES.

39 (ii) SUBCOMMITTEE MEETING MATERIALS, MATERIALS THAT ARE PRESENTED
40 AT A SUBCOMMITTEE MEETING AND SUPPLEMENTAL MATERIALS THAT ARE PROVIDED TO
41 THE GOVERNING BOARD MEMBERS IN PREPARATION FOR A GOVERNING BOARD MEETING
42 OR SUBCOMMITTEE MEETING MUST BE PROVIDED EITHER ON REQUEST OR ONLINE.
43 A SCHOOL DISTRICT GOVERNING BOARD THAT PROVIDES MATERIALS PURSUANT TO THIS
44 ITEM ON REQUEST SHALL PROVIDE THE MATERIALS NOT LATER THAN FIVE BUSINESS
45 DAYS AFTER THE DATE ON WHICH THE SCHOOL DISTRICT RECEIVES A REQUEST FOR
46 THE MATERIALS.

1 (b) PROVIDE THE PUBLIC WITH ACCESS TO THE MATERIALS PRESCRIBED IN
2 SUBDIVISION (a) OF THIS PARAGRAPH AND GOVERNING BOARD MEETING AND
3 SUBCOMMITTEE MEETING MINUTES FOR AT LEAST FIVE YEARS AFTER THE DATE OF THE
4 MEETING.

5 (c) ~~[IF THE DISTRICT HAS A STUDENT COUNT OF MORE THAN FIVE THOUSAND~~
6 ~~STUDENTS,]~~ PROVIDE THE PUBLIC WITH A LIVE VIDEO FEED OF EACH GOVERNING
7 BOARD MEETING AND ONLINE ACCESS TO VIDEO RECORDINGS OF EACH GOVERNING
8 BOARD MEETING FOR AT LEAST FIVE YEARS AFTER THE DATE OF THE MEETING [IF
9 EITHER:

10 (i) THE SCHOOL DISTRICT HAS A STUDENT COUNT OF MORE THAN TWO
11 HUNDRED FIFTY STUDENTS].

12 [(ii) THE SCHOOL DISTRICT HAS A STUDENT COUNT OF TWO HUNDRED FIFTY
13 OR FEWER STUDENTS AND HAS PREVIOUSLY PROVIDED THE PUBLIC WITH A LIVE VIDEO
14 FEED OF A REGULAR BOARD MEETING.]

15 48. IF THE GOVERNING BOARD USES A CONSENT AGENDA FOR A MEETING,
16 ALLOW ANY MEMBER OF THE GOVERNING BOARD TO REMOVE ONE OR MORE ITEMS FROM
17 THE CONSENT AGENDA AT ANY TIME BEFORE THE GOVERNING BOARD VOTES ON THE
18 CONSENT AGENDA. THE GOVERNING BOARD SHALL SEPARATELY DISCUSS AND VOTE ON
19 EACH ITEM THAT IS REMOVED FROM A CONSENT AGENDA.

20 B. Notwithstanding subsection A, paragraphs 7, 9 and 11 of this
21 section, the county school superintendent may construct, improve and
22 furnish school buildings or purchase or sell school sites in the conduct
23 of an accommodation school.

24 C. If any school district acquires real or personal property,
25 whether by purchase, exchange, condemnation, gift or otherwise, the
26 governing board shall pay to the county treasurer any taxes on the
27 property that were unpaid as of the date of acquisition, including
28 penalties and interest. The lien for unpaid delinquent taxes, penalties
29 and interest on property acquired by a school district:

30 1. Is not abated, extinguished, discharged or merged in the title
31 to the property.

32 2. Is enforceable in the same manner as other delinquent tax liens.

33 D. The governing board may not locate a school on property that is
34 less than one-fourth mile from agricultural land regulated pursuant to
35 section 3-365, except that the owner of the agricultural land may agree to
36 comply with the buffer zone requirements of section 3-365. If the owner
37 agrees in writing to comply with the buffer zone requirements and records
38 the agreement in the office of the county recorder as a restrictive
39 covenant running with the title to the land, the school district may
40 locate a school within the affected buffer zone. The agreement may
41 include any stipulations regarding the school, including conditions for
42 future expansion of the school and changes in the operational status of
43 the school that will result in a breach of the agreement.

44 E. A school district, its governing board members, its school
45 council members and its employees are immune from civil liability for the
46 consequences of adopting and implementing policies and procedures pursuant

1 to subsection A of this section and section 15-342. This waiver does not
2 apply if the school district, its governing board members, its school
3 council members or its employees are guilty of gross negligence or
4 intentional misconduct.

5 F. A governing board may delegate in writing to a superintendent,
6 principal or head teacher the authority to prescribe procedures that are
7 consistent with the governing board's policies.

8 G. Notwithstanding any other provision of this title, a school
9 district governing board shall not take any action that would result in a
10 reduction of pupil square footage unless the governing board notifies the
11 school facilities oversight board established by section 41-5701.02 of the
12 proposed action and receives written approval from the school facilities
13 oversight board to take the action. A reduction includes an increase in
14 administrative space that results in a reduction of pupil square footage
15 or sale of school sites or buildings, or both. A reduction includes a
16 reconfiguration of grades that results in a reduction of pupil square
17 footage of any grade level. This subsection does not apply to temporary
18 reconfiguration of grades to accommodate new school construction if the
19 temporary reconfiguration does not exceed one year. The sale of equipment
20 that results in a reduction that falls below the equipment requirements
21 prescribed in section 41-5711, subsection B is subject to commensurate
22 withholding of school district additional assistance monies
23 pursuant to the direction of the school facilities oversight board. Except
24 as provided in section 15-342, paragraph 10, proceeds from the sale of
25 school sites, buildings or other equipment shall be deposited in the
26 school plant fund as provided in section 15-1102.

27 H. Subsections C through G of this section apply to a county board
28 of supervisors and a county school superintendent when operating and
29 administering an accommodation school.

30 I. A school district governing board may delegate authority in
31 writing to the superintendent of the school district to submit plans for
32 new school facilities to the school facilities oversight board for the
33 purpose of certifying that the plans meet the minimum school facility
34 adequacy guidelines prescribed in section 41-5711.

35 J. For the purposes of subsection A, paragraph 37 of this section,
36 attendance boundaries may not be used to require students to attend
37 certain schools based on the student's place of residence.

38 Sec. 3. Section 15-342, Arizona Revised Statutes, is amended to
39 read:

40 15-342. Discretionary powers

41 The governing board OF A SCHOOL DISTRICT may:

42 1. Expel pupils for misconduct.

43 2. Exclude from grades one through eight children WHO ARE under six
44 years of age.

45 3. Make such separation of groups of pupils as ~~tt~~ THE GOVERNING
46 BOARD deems advisable.

1 4. Maintain such special schools during vacation as deemed
2 necessary for the benefit of the pupils of the school district.

3 5. Allow a superintendent or principal or representatives of the
4 superintendent or principal to travel for a school purpose, as determined
5 by a majority vote of the board. The board may allow members and
6 members-elect of the board to travel within or without the school district
7 for a school purpose and receive reimbursement. ANY OUT-OF-STATE TRAVEL
8 PURSUANT TO THIS PARAGRAPH MUST BE APPROVED ON A PER-TRIP BASIS BY A
9 MAJORITY ROLL CALL VOTE OF THE GOVERNING BOARD MEMBERS IN A PUBLIC MEETING
10 HELD PURSUANT TO TITLE 38, CHAPTER 3, ARTICLE 3.1. SUBJECT TO THE
11 REQUIREMENTS PRESCRIBED BY PARAGRAPH 40 OF THIS SECTION, THE GOVERNING
12 BOARD SHALL APPROVE OUT-OF-STATE TRAVEL BEFORE THE PROPOSED TRAVEL
13 WHENEVER POSSIBLE. IF PRIOR APPROVAL OF OUT-OF-STATE TRAVEL IS
14 IMPOSSIBLE, THE TRAVEL MUST BE SUBMITTED TO THE GOVERNING BOARD FOR
15 APPROVAL PURSUANT TO PARAGRAPH 41 OF THIS SECTION NOT LATER THAN THIRTY
16 DAYS AFTER THE TRAVEL OCCURS. Any expenditure for travel and subsistence
17 pursuant to this paragraph shall be as provided in title 38, chapter 4,
18 article 2. The designated post of duty referred to in section 38-621
19 shall be construed, for school district governing board members, to be the
20 member's actual place of residence, as opposed to the school district
21 office or the school district boundaries. Such expenditures shall be a
22 charge against the budgeted school district funds. The governing board of
23 a school district shall prescribe procedures and amounts for reimbursement
24 of lodging and subsistence expenses. Reimbursement amounts shall not
25 exceed the maximum amounts established pursuant to section 38-624,
26 subsection C.

27 6. Construct or provide in rural districts housing facilities for
28 teachers and other school employees that the board determines are
29 necessary to operate the school.

30 7. Sell or lease to the state, a county, a city, another school
31 district or a tribal government agency any school property required for a
32 public purpose if the sale or lease of the property will not affect the
33 normal operations of a school within the school district.

34 8. Annually budget and spend monies for membership in an
35 association of school districts within this state.

36 9. Enter into leases or lease-purchase agreements for school
37 buildings or grounds, or both, as lessor or as lessee, for periods of less
38 than twenty years subject to voter approval for construction of school
39 buildings as prescribed in section 15-341, subsection A, paragraph 7.

40 10. Subject to title 41, chapter 56, sell school sites or enter
41 into leases or lease-purchase agreements for school buildings and grounds,
42 as lessor or as lessee, for a period of twenty years or more, but not to
43 exceed ninety-nine years, if authorized by a vote of the school district
44 electors in an election called by the governing board as provided in
45 section 15-491, except that authorization by the school district electors

1 in an election is not required if one of the following requirements is
2 met:

3 (a) The market value of the school property is less than \$50,000 or
4 the property is procured through a renewable energy development agreement,
5 an energy performance contract, which among other items includes a
6 renewable energy power service agreement, or a simplified energy
7 performance contract pursuant to section 15-213.01.

8 (b) The buildings and sites are completely funded with monies
9 distributed by the ~~school facilities~~ division OF SCHOOL FACILITIES within
10 the department of administration or at the direction of the school
11 facilities oversight board, or its predecessor.

12 (c) The transaction involves the sale of improved or unimproved
13 property pursuant to an agreement with the school facilities oversight
14 board in which the school district agrees to sell the improved or
15 unimproved property and transfer the proceeds of the sale to the school
16 facilities oversight board in exchange for monies from the school
17 facilities oversight board for the acquisition of a more suitable school
18 site. For a sale of property acquired by a school district before July 9,
19 1998, a school district shall transfer to the school facilities oversight
20 board that portion of the proceeds that equals the cost of the acquisition
21 of a more suitable school site. If there are any remaining proceeds after
22 the transfer of monies to the school facilities oversight board, a school
23 district shall only use those remaining proceeds for future land purchases
24 approved by the school facilities oversight board, or for capital
25 improvements not funded by the school facilities oversight board for any
26 existing or future facility.

27 (d) The transaction involves the sale of improved or unimproved
28 property pursuant to a formally adopted plan and the school district uses
29 the proceeds of this sale to purchase other property that will be used for
30 similar purposes as the property that was originally sold if the sale
31 proceeds of the improved or unimproved property are used within two years
32 after the date of the original sale to purchase the replacement property.
33 If the sale proceeds of the improved or unimproved property are not used
34 within two years after the date of the original sale to purchase
35 replacement property, the sale proceeds shall be used toward paying any
36 outstanding bonded indebtedness. If any sale proceeds remain after paying
37 for outstanding bonded indebtedness, or if the district has no outstanding
38 bonded indebtedness, sale proceeds shall be used to reduce the district's
39 primary tax levy. A school district shall not use this subdivision unless
40 all of the following conditions exist:

41 (i) The school district is the sole owner of the improved or
42 unimproved property that the school district intends to sell.

43 (ii) The school district did not purchase the improved or
44 unimproved property that the school district intends to sell with monies
45 that were distributed pursuant to title 41, chapter 56.

1 (iii) The transaction does not violate section 15-341,
2 subsection G.

3 11. Review the decision of a teacher to promote a pupil to a grade
4 or retain a pupil in a grade in a common school or to pass or fail a pupil
5 in a course in high school. The pupil has the burden of proof to overturn
6 the decision of a teacher to promote, retain, pass or fail the pupil. In
7 order to sustain the burden of proof, the pupil shall demonstrate to the
8 governing board that the pupil has mastered the academic standards adopted
9 by the state board of education pursuant to sections 15-701 and 15-701.01.
10 If the governing board overturns the decision of a teacher pursuant to
11 this paragraph, the governing board shall adopt a written finding that the
12 pupil has mastered the academic standards. Notwithstanding title 38,
13 chapter 3, article 3.1, the governing board shall review the decision of a
14 teacher to promote a pupil to a grade or retain a pupil in a grade in a
15 common school or to pass or fail a pupil in a course in high school in
16 executive session unless a parent or legal guardian of the pupil or the
17 pupil, if emancipated, disagrees that the review should be conducted in
18 executive session and then the review shall be conducted in an open
19 meeting. If the review is conducted in executive session, the board shall
20 notify the teacher of the date, time and place of the review and shall
21 allow the teacher to be present at the review. If the teacher is not
22 present at the review, the board shall consult with the teacher before
23 making its decision. Any request, including the written request as
24 provided in section 15-341, the written evidence presented at the review
25 and the written record of the review, including the decision of the
26 governing board to accept or reject the teacher's decision, shall be
27 retained by the governing board as part of its permanent records.

28 12. Provide transportation or site transportation loading and
29 unloading areas for any child or children if deemed ~~for~~ **IN** the best
30 interest of the district, whether within or without the district, county
31 or state.

32 13. Enter into intergovernmental agreements and contracts with
33 school districts or other governing bodies as provided in section 11-952.
34 Intergovernmental agreements and contracts between school districts or
35 between a school district and other governing bodies as provided in
36 section 11-952 are exempt from competitive bidding under the procurement
37 rules adopted by the state board of education pursuant to section 15-213.

38 14. Include in the curricula ~~tt~~ **THE GOVERNING BOARD** prescribes for
39 high schools in the school district career and technical education,
40 vocational education and technology education programs and career and
41 technical, vocational and technology program improvement services for the
42 high schools, subject to approval by the state board of education. The
43 governing board may contract for the provision of career and technical,
44 vocational and technology education as provided in section 15-789.

45 15. Suspend a teacher or administrator from the teacher's or
46 administrator's duties without pay for a period of time of not ~~to exceed~~

1 MORE THAN ten school days, if the board determines that suspension is
2 warranted pursuant to section 15-341, subsection A, paragraph 21 or 22.

3 16. Dedicate school property within an incorporated city or town to
4 that city or town or within a county to that county for use as a public
5 right-of-way if both of the following apply:

6 (a) Pursuant to an ordinance adopted by the city, town or county,
7 there will be conferred on the school district privileges and benefits
8 that may include benefits related to zoning.

9 (b) The dedication will not affect the normal operation of any
10 school within the district.

11 17. Enter into option agreements for the purchase of school sites.

12 18. Donate surplus or outdated learning materials, educational
13 equipment and furnishings to nonprofit community organizations if the
14 governing board determines that the anticipated cost of selling the
15 learning materials, educational equipment or furnishings equals or exceeds
16 the estimated market value of the materials.

17 19. Prescribe policies to assess reasonable fees for students to
18 use district-provided parking facilities. The fees are to be applied by
19 the district solely against costs incurred in operating or securing the
20 parking facilities. Any policy adopted by the governing board pursuant to
21 this paragraph shall include a fee waiver provision in appropriate cases
22 of need or economic hardship.

23 20. Establish alternative education programs that are consistent
24 with the laws of this state to educate pupils, including pupils who have
25 been reassigned pursuant to section 15-841, subsection E or F.

26 21. Require a period of silence to be observed at the commencement
27 of the first class of the day in the schools. If a governing board
28 chooses to require a period of silence to be observed, the teacher in
29 charge of the room in which the first class is held shall announce that a
30 period of silence not to exceed one minute in duration will be observed
31 for meditation, and during that time no activities shall take place and
32 silence shall be maintained.

33 22. Require students to wear uniforms.

34 23. Exchange unimproved property or improved property, including
35 school sites, if the governing board determines that the improved property
36 is unnecessary for the continued operation of the school district without
37 requesting authorization by a vote of the school district electors and if
38 the governing board determines that the exchange is necessary to protect
39 the health, safety or welfare of pupils or if the governing board
40 determines that the exchange is based on sound business principles for
41 either:

42 (a) Unimproved or improved property of equal or greater value.

43 (b) Unimproved property that the owner contracts to improve if the
44 value of the property ultimately received by the school district is of
45 equal or greater value.

1 24. For common and high school pupils, assess reasonable fees for
2 optional extracurricular activities and programs conducted when the common
3 or high school is not in session, except that fees shall not be charged
4 for pupils' access to or use of computers or related materials. For high
5 school pupils, the governing board may assess reasonable fees for fine
6 arts and vocational education courses and for optional services, equipment
7 and materials offered to the pupils beyond those required to successfully
8 complete the basic requirements of any other course, except that fees
9 shall not be charged for pupils' access to or use of computers or related
10 materials. Fees assessed pursuant to this paragraph shall be adopted at a
11 public meeting after notice has been given to all parents of pupils
12 enrolled at schools in the district and shall not exceed the actual costs
13 of the activities, programs, services, equipment or materials. The
14 governing board shall authorize principals to waive the assessment of all
15 or part of a fee assessed pursuant to this paragraph if it creates an
16 economic hardship for a pupil. For the purposes of this paragraph,
17 "extracurricular activity" means any optional, noncredit, educational or
18 recreational activity that supplements the education program of the
19 school, whether offered before, during or after regular school hours.

20 25. Notwithstanding section 15-341, subsection A, paragraphs 7 and
21 9, construct school buildings and purchase or lease school sites, without
22 a vote of the school district electors, if the buildings and sites are
23 totally funded from one or more of the following:

24 (a) Monies in the unrestricted capital outlay fund, except that the
25 estimated cost shall not exceed \$250,000 for a district that uses section
26 15-949.

27 (b) Monies distributed at the direction of the school facilities
28 oversight board established by section 41-5701.02 or by the ~~school~~
29 ~~facilities~~ division OF SCHOOL FACILITIES within the department of
30 administration pursuant to title 41, chapter 56.

31 (c) Monies specifically donated for the purpose of constructing
32 school buildings.

33 This paragraph does not eliminate the requirement for an election to raise
34 revenues for a capital outlay override pursuant to section 15-481 or a
35 bond election pursuant to section 15-491.

36 26. Conduct a background investigation that includes a fingerprint
37 check conducted pursuant to section 41-1750, subsection G for certificated
38 personnel and personnel who are not paid employees of the school district,
39 as a condition of employment. A school district may release the results
40 of a background check to another school district for employment purposes.
41 The school district may charge the costs of fingerprint checks to its
42 fingerprinted employee, except that the school district may not charge the
43 costs of fingerprint checks for personnel who are not paid employees of
44 the school district.

45 27. Unless otherwise prohibited by law, sell advertising as
46 follows:

1 (a) Advertisements shall be age appropriate and not promote any
2 substance that is illegal for minors such as alcohol, tobacco and drugs or
3 gambling. Advertisements shall comply with the state sex education policy
4 of abstinence.

5 (b) Advertising approved by the governing board for the exterior of
6 school buses may appear only on the sides of the bus in the following
7 areas:

8 (i) The signs shall be below the seat level rub rail and not extend
9 above the bottom of the side windows.

10 (ii) The signs shall be at least three inches from any required
11 lettering, lamp, wheel well or reflector behind the service door or stop
12 signal arm.

13 (iii) The signs shall not extend from the body of the bus so as to
14 allow a handhold or present a danger to pedestrians.

15 (iv) The signs shall not interfere with the operation of any door
16 or window.

17 (v) The signs shall not be placed on any emergency doors.

18 (c) The school district shall establish an advertisement fund that
19 is composed of revenues from the sale of advertising. The monies in an
20 advertisement fund are not subject to reversion.

21 28. Assess reasonable damage deposits to pupils in grades seven
22 through twelve for using textbooks, musical instruments, band uniforms or
23 other equipment required for academic courses. The governing board shall
24 adopt policies on any damage deposits assessed pursuant to this paragraph
25 at a public meeting called for this purpose after providing notice to all
26 parents of pupils in grades seven through twelve in the school district.
27 Principals of individual schools within the district may waive the damage
28 deposit requirement for any textbook or other item if the payment of the
29 damage deposit would create an economic hardship for the pupil. The
30 school district shall return the full amount of the damage deposit for any
31 textbook or other item if the pupil returns the textbook or other item in
32 reasonably good condition within the time period prescribed by the
33 governing board. For the purposes of this paragraph, "in reasonably good
34 condition" means the textbook or other item is in the same or a similar
35 condition as it was when the pupil received it, plus ordinary wear and
36 tear.

37 29. Notwithstanding section 15-1105, ~~expend~~ SPEND surplus monies in
38 the civic center school fund for maintenance and operations or
39 unrestricted capital outlay if sufficient monies are available in the fund
40 after meeting the needs of programs established pursuant to section
41 15-1105.

42 30. Notwithstanding section 15-1143, spend surplus monies in the
43 community school program fund for maintenance and operations or
44 unrestricted capital outlay if sufficient monies are available in the fund
45 after meeting the needs of programs established pursuant to section
46 15-1142.

1 31. Adopt guidelines to standardize the format of the school report
2 cards required by section 15-746 for schools within the district.

3 32. Adopt policies that require parental notification when a law
4 enforcement officer interviews a pupil on school grounds. Policies
5 adopted pursuant to this paragraph shall not impede a peace officer from
6 performing the peace officer's duties. If the school district governing
7 board adopts a policy that requires parental notification:

8 (a) The policy may provide reasonable exceptions to the parental
9 notification requirement.

10 (b) The policy shall set forth whether and under what circumstances
11 a parent may be present when a law enforcement officer interviews the
12 pupil, including reasonable exceptions to the circumstances under which a
13 parent may be present when a law enforcement officer interviews the pupil,
14 and shall specify a reasonable maximum time after a parent is notified
15 that an interview of a pupil by a law enforcement officer may be delayed
16 to allow the parent to be present.

17 33. Enter into voluntary partnerships with any party to finance
18 with monies other than school district monies and cooperatively design
19 school facilities that comply with the adequacy standards prescribed in
20 section 41-5711 and the square footage per pupil requirements pursuant to
21 section 41-5741, subsection D, paragraph 3, subdivision (b). The design
22 plans and location of any such school facility shall be submitted to the
23 school facilities oversight board for approval pursuant to section
24 41-5741, subsection O. If the school facilities oversight board approves
25 the design plans and location of any such school facility, the party in
26 partnership with the school district may cause to be constructed and the
27 district may begin operating the school facility before monies are
28 distributed at the direction of the school facilities oversight board
29 pursuant to section 41-5741. Monies distributed from the new school
30 facilities fund to a school district in a partnership with another party
31 to finance and design the school facility shall be paid to the school
32 district pursuant to section 41-5741. The school district shall reimburse
33 the party in partnership with the school district from the monies paid to
34 the school district pursuant to section 41-5741, in accordance with the
35 voluntary partnership agreement. Before the school facilities oversight
36 board directs the distribution of any monies pursuant to this subsection,
37 the school district shall demonstrate to the school facilities oversight
38 board that the facilities to be funded pursuant to section 41-5741,
39 subsection O meet the minimum adequacy standards prescribed in section
40 41-5711. If the cost to construct the school facility exceeds the amount
41 that the school district receives from the new school facilities fund, the
42 partnership agreement between the school district and the other party
43 shall specify that, except as otherwise provided by the other party, any
44 such excess costs shall be the responsibility of the school district. The
45 school district governing board shall adopt a resolution in a public
46 meeting that an analysis has been conducted on the prospective effects of

1 the decision to operate a new school with existing monies from the school
2 district's maintenance and operations budget and how this decision may
3 affect other schools in the school district. If a school district
4 acquires land by donation at an appropriate school site approved by the
5 school facilities oversight board and a school facility is financed and
6 built on the land pursuant to this paragraph, the school facilities
7 oversight board shall direct the distribution of an amount equal to twenty
8 percent of the fair market value of the land that can be used for academic
9 purposes. The school district shall place the monies in the unrestricted
10 capital outlay fund and increase the unrestricted capital budget limit by
11 the amount of the monies placed in the fund. Monies distributed under
12 this paragraph shall be distributed from the new school facilities fund
13 pursuant to section 41-5741. If a school district acquires land by
14 donation at an appropriate school site approved by the school facilities
15 oversight board and a school facility is financed and built on the land
16 pursuant to this paragraph, the school district shall not receive monies
17 for the donation of real property pursuant to section 41-5741,
18 subsection F. It is unlawful for:

19 (a) A county, city or town to require as a condition of any land
20 use approval that a landowner or landowners that entered into a
21 partnership pursuant to this paragraph provide any contribution, donation
22 or gift, other than a site donation, to a school district. This
23 subdivision only applies to the property in the voluntary partnership
24 agreement pursuant to this paragraph.

25 (b) A county, city or town to require as a condition of any land
26 use approval that the landowner or landowners located within the
27 geographic boundaries of the school subject to the voluntary partnership
28 pursuant to this paragraph provide any donation or gift to the school
29 district except as provided in the voluntary partnership agreement
30 pursuant to this paragraph.

31 (c) A community facilities district established pursuant to title
32 48, chapter 4, article 6 to be used for reimbursement of financing the
33 construction of a school pursuant to this paragraph.

34 (d) A school district to enter into an agreement pursuant to this
35 paragraph with any party other than a master planned community party. Any
36 land area consisting of at least three hundred twenty acres that is the
37 subject of a development agreement with a county, city or town entered
38 into pursuant to section 9-500.05 or 11-1101 shall be deemed to be a
39 master planned community. For the purposes of this subdivision, "master
40 planned community" means a land area consisting of at least three hundred
41 twenty acres, which may be noncontiguous, that is the subject of a zoning
42 ordinance approved by the governing body of the county, city or town in
43 which the land is located that establishes the use of the land area as a
44 planned area development or district, planned community development or
45 district, planned unit development or district or other land use category
46 or district that is recognized in the local ordinance of such county, city

1 or town and that specifies the use of such land is for a master planned
2 development.

3 34. Enter into an intergovernmental agreement with a presiding
4 judge of the juvenile court to implement a law-related education program
5 as defined in section 15-154. The presiding judge of the juvenile court
6 may assign juvenile probation officers to participate in a law-related
7 education program in any school district in the county. The cost of
8 juvenile probation officers who participate in the program implemented
9 pursuant to this paragraph shall be funded by the school district.

10 35. Offer to sell outdated learning materials, educational
11 equipment or furnishings at a posted price commensurate with the value of
12 the items to pupils who are currently enrolled in that school district
13 before those materials are offered for public sale.

14 36. If the school district is a small school district as defined in
15 section 15-901, and if allowed by federal law, opt out of federal grant
16 opportunities if the governing board determines that the federal
17 requirements impose unduly burdensome reporting requirements.

18 37. Prescribe and enforce policies and procedures for the emergency
19 administration of inhalers by trained employees of the school district and
20 nurses who are under contract with the school district pursuant to section
21 15-158.

22 38. Develop policies and procedures to allow principals to budget
23 for or assist with budgeting federal, state and local monies.

24 39. Subject to article IX, section 7, Constitution of Arizona, the
25 laws pertaining to travel and subsistence, gifts, grants, including
26 federal grants, or devises and policies adopted by the department of
27 education, provide food and beverages at school district events, including
28 official school functions and trainings.

29 40. BEFORE VOTING ON WHETHER TO APPROVE PROPOSED OUT-OF-STATE
30 TRAVEL PURSUANT TO PARAGRAPH 5 OF THIS SECTION, THE GOVERNING BOARD SHALL
31 DO ALL OF THE FOLLOWING:

32 (a) IDENTIFY EACH INDIVIDUAL WHO MAY TRAVEL OUT OF STATE, INCLUDING
33 THE INDIVIDUAL'S JOB TITLE. AN INDIVIDUAL WHO IS NOT IDENTIFIED IN THE
34 ORIGINAL PROPOSAL THAT IS APPROVED BY THE GOVERNING BOARD PURSUANT TO THIS
35 PARAGRAPH MAY TRAVEL OUT OF STATE IN PLACE OF AN INDIVIDUAL WHO WAS
36 IDENTIFIED IN THE ORIGINAL PROPOSAL ONLY IF BOTH OF THE FOLLOWING APPLY:

37 (i) THE SUPERINTENDENT NOTIFIES THE GOVERNING BOARD IN WRITING AND
38 AT THE NEXT REGULAR PUBLIC MEETING OF THE GOVERNING BOARD THAT AN
39 INDIVIDUAL WHO WAS NOT IDENTIFIED IN THE ORIGINAL PROPOSAL TRAVELED IN
40 PLACE OF THE INDIVIDUAL WHO WAS IDENTIFIED IN THE ORIGINAL PROPOSAL. THE
41 NOTIFICATION PURSUANT TO THIS ITEM SHALL INCLUDE ALL OF THE INFORMATION
42 REQUIRED BY THIS PARAGRAPH FOR THE ORIGINAL PROPOSAL.

43 (ii) THE TRAVEL EXPENSES INCURRED BY THE INDIVIDUAL WHO WAS NOT
44 IDENTIFIED IN THE ORIGINAL PROPOSAL DO NOT EXCEED THE ESTIMATED COSTS
45 PURSUANT TO SUBDIVISION (c) OF THIS PARAGRAPH FOR THE INDIVIDUAL WHO WAS
46 IDENTIFIED IN THE ORIGINAL PROPOSAL.

1 (b) IDENTIFY THE NAME AND ADDRESS OF THE LODGING FACILITY AT WHICH
2 EACH INDIVIDUAL WILL STAY DURING THE PROPOSED TRAVEL.

3 (c) ESTIMATE THE TOTAL COST OF THE PROPOSED TRAVEL AND THE COST PER
4 INDIVIDUAL.

5 (d) PUBLICLY NOTE AND DESCRIBE BOTH THE SCHOOL PURPOSES OF THE
6 PROPOSED TRAVEL AND THE BENEFIT OF THE PROPOSED TRAVEL TO THE SCHOOL
7 DISTRICT.

8 41. IF OUT-OF-STATE TRAVEL THAT HAS ALREADY OCCURRED IS SUBMITTED
9 TO THE GOVERNING BOARD FOR APPROVAL PURSUANT TO PARAGRAPH 5 OF THIS
10 SECTION:

11 (a) BEFORE VOTING ON WHETHER TO APPROVE THE TRAVEL, THE GOVERNING
12 BOARD SHALL IDENTIFY ALL OF THE FOLLOWING:

13 (i) EACH INDIVIDUAL, INCLUDING THE INDIVIDUAL'S JOB TITLE, WHO
14 TRAVELED OUT OF STATE.

15 (ii) THE NAME AND ADDRESS OF THE LODGING FACILITY AT WHICH EACH
16 INDIVIDUAL STAYED DURING THE TRAVEL.

17 (iii) THE TOTAL COST OF THE TRAVEL AND THE COST PER INDIVIDUAL.

18 (iv) THE SCHOOL PURPOSES OF THE TRAVEL AND THE BENEFIT OF THE
19 TRAVEL TO THE SCHOOL DISTRICT.

20 (b) IF THE GOVERNING BOARD DOES NOT APPROVE OUT-OF-STATE TRAVEL
21 THAT HAS ALREADY OCCURRED, THE GOVERNING BOARD MAY REQUIRE EACH INDIVIDUAL
22 WHO TRAVELED OUT OF STATE WITHOUT APPROVAL TO REIMBURSE THE SCHOOL
23 DISTRICT FOR ANY EXPENSES THAT WERE PAID BY THE DISTRICT FOR THE TRAVEL.

24 Enroll and engross to conform

25 Amend title to conform

JAKE HOFFMAN

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